"Regarding the amendment in GR dated 25.08.2026 regarding the consent fee rates charged by the Maharashtra Pollution Control Board for establishing industries, commencing production, and for consent letters issued to mining projects."

GOVERNMENT OF MAHARASHTRA
ENVIRONMENT AND CLIMATE CHANGE DEPARTMENT
Government Resolution No.: ENV-2026/CR-158/TC-1
Mantralaya, Madam Cama Road, Hutatma Rajguru Chowk, Mumbai – 400 032.
Date: 24 September, 2026

Read:

1) Government Resolution No.: ENV-2026/CR-158/TC-1, dated 25.08.2026.

Preamble:

Consequent upon the insertion of Section 21A in the Air Act, 1981 and Section 27A in the Water Act, 1974 by the Jan Vishwas (Amendment of Provisions) Act, 2023, the Ministry of Environment, Forest and Climate Change issued the Control of Air Pollution and Control of Water Pollution (Grant, Refusal or Cancellation of Consent) Guidelines, 2025, which were thereafter amended by the Control of Air Pollution (Grant, Refusal or Cancellation of Consent) Amendment Guidelines, 2026 and the Control of Water Pollution (Grant, Refusal or Cancellation of Consent) Amendment Guidelines, 2026 (in force from 27.01.2026). Every State Board is required to act in accordance with the Guidelines as so amended.

Accordingly, Government of Maharashtra issued Government Resolution No.: ENV-2026/CR-158/TC-1, dated 25.08.2026 regarding the Consent Fee calculations. Consequent upon the issue of Government Resolution dated 25.08.2026, the Maharashtra Pollution Control Board, vide their letter No AS(T)/2026/21, dated 07.09.2026 sent the proposal for suggesting certain amendments.

The amendments suggested by the Maharashtra Pollution Control Board have been considered by Government and the following decision has been taken by Government of Maharashtra in this regard.

GOVERNMENT RESOLUTION:

In exercise of the power conferred by the Control of Air Pollution and Control of Water Pollution (Grant, Refusal or Cancellation of Consent) Guidelines, 2025, which were thereafter amended by the Control of Air Pollution (Grant, Refusal or Cancellation of Consent) Amendment Guidelines, 2026 and the Control of Water Pollution (Grant, Refusal or Cancellation of Consent) Amendment Guidelines, 2026, the amendments in the Government Resolution dated 25.08.2026 as follows;

1) In the GR dated 25.08.2026, for the clause 2 (d), the following clause shall be substituted, namely;

2 (d) For Micro and Small enterprises located in duly notified industrial estates / areas, Consent to Establish shall be deemed to be granted upon submission of a self-certified Form-I.

2) In the GR dated 25.08.2026, for the clause 3 (a), the following clause shall be substituted, namely;

3(a) Local Bodies and Infrastructure projects (per-year fee based on sewage):

Sr. No.	Quantum of sewage generated	Local Body / Housing (Rs.)	Other than Housing (Rs.)
1	Up to 10 KLD	5,000	7,500
2	Above 10 up to 50 KLD	15,000	22,500
3	Above 50 up to 100 KLD	25,000	37,500
4	Above 100 up to 300 KLD	35,000	52,500
5	Above 300 up to 500 KLD	55,000	82,500
6	Above 500 KLD up to 1 MLD	65,000	97,500
7	Above 1 up to 5 MLD	75,000	1,12,500
8	Above 5 up to 10 MLD	1,00,000	1,50,000
9	Above 10 up to 25 MLD	2,00,000	3,00,000
10	Above 25 MLD	4,00,000	6,00,000

Consent to Establish for these projects shall be based on the capital-investment formula at Part 2(a). No rebate on Consent to Establish for Building and Construction projects (Categories 10.0 and 10.1).

3 In the GR dated 25.08.2026, for the clause 3(e), the following clause shall be substituted, namely;

3(e) Establishments with a diesel generator as the only source (per-year fee) :

Sr No	Rating of the Diesel Generator Set	Fee (Rs)
1	≤ 250 KVA	Nil
2	250 KVA to ≤ 500 KVA	1,000
3	500 KVA to ≤ 1 MVA	2,000
4	≥ 1 MVA	5,000

4 In the GR dated 25.08.2026, for the clause 4, the following clause shall be substituted, namely;

4) Healthcare Establishments-Combined consent and BMW Authorization
The fee structure for HCEs shall be like that of the industries as mentioned in Clause (2) of the GR dated 25.08.2026.

provided that, no fees shall be charged to State / Central Government / Local Body Authorities health service establishments Owned and Operated by State / Central Government / Local Body Authorities.

Also, provided that, Medical Colleges, R&D activities and industries generating BMW: Consolidated Consent and Authorization on the capital-investment basis.

5 In the GR dated 25.08.2026, for the clause 5 (a), the following clause shall be substituted, namely;

5(a) A single step procedure shall be adopted for granting consent under Water Act & Air Act along with authorization under various Waste Management Rules notified under the Environment Protections Act, 1986 as per applicability.

6 In the GR dated 25.08.2026, for the clause 5 (d), the following clause shall be substituted, namely;

5 (d) Five per cent of the consent fee shall be credited to the Central Pollution Control Board as service fee in accordance with Section 36 of the Water (Prevention and Control of Pollution) Act, 1974 and Section 33 of the Air (Prevention and Control of Pollution) Act, 1981 / the said guidelines.

This Resolution is available on www.maharashtra.gov.in with computer code 202609241223060304, and is issued under digital signature of the competent authority.

By order and in the name of the Governor of Maharashtra,

JAYASHREE SHRIKANT BHOJ

Digitally signed by JAYASHREE SHRIKANT BHOJ
DN: c=IN, o=Personal, 2.5.4.20=0119735BBE1C887FA0D0F2DBE3C22DC5DCA429F5FDA21A6632A211ACB8375568, postalCode=400021, st=Maharashtra, serialNumber=EDB71466D6F30EFD234296DA10D1852551B0606368C44A66D8AD6C3DBECFAB29, cn=JAYASHREE SHRIKANT BHOJ
Date: 2026.09.24 12:24:28 +05'30'

(Jayashree Bhoj)
Secretary to the Government of Maharashtra,
Environment and Climate Change Department

To,

1. Secretary to the Governor, Rajbhavan, Mumbai.
2. Addl Chief Secretary, Chief Minister Office, Government of Maharashtra, Mantralaya, Mumbai.
3. Secretary to Deputy Chief Minister (Urban and Housing), Government of Maharashtra, Mantralaya, Mumbai.

4. Secretary to Deputy Chief Minister (State Excise, Sports and Minorities), Government of Maharashtra, Mantralaya, Mumbai.
5. Private Secretary to Minister, Environment and Climate Change Department, Government of Maharashtra, Mantralaya, Mumbai.
6. Chief Secretary, Government of Maharashtra, Mantralaya, Mumbai.
7. The Addl Chief Secretary (Urban Development Department), Government of Maharashtra, Mantralaya, Mumbai.
8. The Principal Secretary (Public Health Department), Government of Maharashtra, Mantralaya, Mumbai.
9. The Principal Secretary (Industry and Mining), Government of Maharashtra, Mantralaya, Mumbai.
10. The Principal Secretary (Medical Education and Drugs Department), Government of Maharashtra, Mantralaya, Mumbai.
11. The Member Secretary, Maharashtra Pollution Control Board, Mumbai.
12. The Chief Executive Officer, Maharashtra Industrial Development Corporation, Mumbai.
13. The Development Commissioner (Industries), Directorate of Industries, Mumbai.
14. All Divisional Commissioners / All District Collectors.
15. All Regional Officers / Sub-Regional Officers, Maharashtra Pollution Control Board.
16. All Municipal Corporation Commissioners / All Chief Executive Officers, Zilla Parishad.
17. The Director, Health Services / The Director, Medical Education and Research, Maharashtra State, Mumbai.
18. All Sections, Environment and Climate Change Department, Mantralaya, Mumbai. / Select File (TC-1).